

8. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING IN RE: JOINDER TO SAN RAMON REGIONAL MEDICAL CENTER, ET AL.'S MOTION TO STRIKE PLAINTIFF'S 2ND AMENDED COMPLAINT
FILED BY: MALANI, DR. NARENDRA K
TENTATIVE RULING:

See Line 5 above.

9. 9:00 AM CASE NUMBER: C26-01360
CASE NAME: NOEMI MURDOCH VS. FCA US LLC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: FCA US LLC
TENTATIVE RULING:

WITHDRAWN by the moving party. See Notice of Withdrawal filed June 30, 2026.

10. 9:00 AM CASE NUMBER: L25-05639
CASE NAME: OPORTUN, INC VS. KAROL PEREZ MORA
HEARING IN RE: MOTION TO SET ASIDE DEFAULT JUDGMENT
FILED BY:
TENTATIVE RULING:

Defendant Karol Perez Mora (“Defendant”) filed a Motion to Set Aside Default and Default Judgment on February 10, 2026 (“Motion to Set Aside Default”). The Motion to Set Aside Default was set for hearing on June 22, 2026. In its discretion, the Court continued the matter to July 13, 2026 to allow all parties to be served with the hearing date and time.

Background

Plaintiff Oportun, Inc (“Plaintiff”) filed its Complaint on May 22, 2025.

A Proof of Service of Summons was filed September 17, 2025 (the “9/17/25 POSS”). The 9/17/25 POSS reflects service on Defendant by substitute service on “Jose Salazar, CO-RESIDENT” on August 28, 2025, at 12:45 pm, at “2761 GRANT ST APT 35, CONCORD, CA 94520.” 9/17/25 POSS, ¶¶3-5. The service was done by a registered process server. *Id.* at ¶7.

A default was entered against Defendant on November 10, 2025 (the “Default”). Thereafter, a request for entry of a default judgment was submitted to the Court. A default judgment was entered on December 23, 2025 (the “Default Judgment”).

Shortly thereafter, in February 2026, Defendant filed the Motion to Set Aside Default. The motion is supported by Defendant’s Declaration filed February 10, 2026 (the “Supporting Declaration”). A Proof of Service was filed February 10, 2026 reflecting service of the

Motion to Set Aside Default on Plaintiff's counsel. In its order adopting the tentative ruling issued for the initial hearing date, the Court noted that the service date was February 6, 2026. See Order on Motion filed June 22, 2026 ("June 22nd Order"). That indicated to the Court that the copy served would not have had the hearing date and time on the caption, as was written in by the clerk of the Court at the time of filing on or about February 10, 2026. *Id.*

The Court, in its discretion, continued the matter to July 13, 2026 so that the court clerk could serve all parties with the hearing date and time. The Certificate of Mailing filed June 22, 2026 reflects service of the June 22nd Order on all parties, giving notice of the new hearing date. The parties were further ordered to meet and confer regarding a stipulation to the relief sought by the Motion to Set Aside Default. At this time, no stipulation has been filed.

No opposition has been filed.

Analysis

1. Defendant Demonstrates That Service Was Defective.

Defendant argues that the service was defective.

The service was done by a registered process server. 9/17/25 POSS, ¶7. This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

The Court find that the proffered evidence rebuts that presumption.

Defendant indicates that she does not live with anyone named "Jose Salazar" and did not learn of this lawsuit until the week of January 6, 2026 when she received documents in the mail from the Court. See Supporting Declaration, ¶¶3-6. She contends that she only lives with her husband who is 46 years old (as opposed to the person sub-served who is described as being 30 years old). *Id.* at ¶7; and c.f. 9/17/25 POSS, ¶5.b.

2. The Default And Entry Of Judgment Thereon Are Void.

The Court has authority to vacate a void judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) ("The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order."); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In light of the Court's finding that service was defective, as addressed above, the Court concludes that the Default and the Default Judgment entered thereon are void.

3. Defendant Did Not Have Actual Notice Of The Pending Lawsuit.

Code of Civil Procedure section 473.5 allows a party to bring a motion to set aside a default entered against the party where “service of a summons has not resulted in actual notice to a party in time to defend the action.” Code Civ. Proc. § 473.5(a). The motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” *Id.* § 473.5(b).

Independent of the validity of the service, Defendant has demonstrated a lack of actual notice in time to defend the action which was not caused by Defendant’s avoidance of service or inexcusable neglect.

4. Mistake, Inadvertence, Surprise, Or Excusable Neglect.

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from “his or her mistake, inadvertence, surprise, or excusable neglect.” Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480 (“*Rivercourt*”). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

The Court need not consider this separate ground for relief in light of the findings above.

Disposition

The Court finds and orders as follows:

1. For the reasons set forth above, the Motion to Set Aside Default is GRANTED.
2. The Default and Default Judgment are hereby VACATED and set aside.
3. The case is set for a status conference regarding service of process and the next steps in the case for **October 22, 2026 at 8:30 am in Department 34** of the Court. Plaintiff shall give notice of the status conference to Defendant.
4. The Court shall prepare the order after hearing.

11. 9:00 AM CASE NUMBER: C25-02471
CASE NAME: KRANTI KAPRE V. CLEAR RECON CORP
HEARING IN RE: DEMURRER TO THE FIRST AMENDED COMPLAINT
FILED BY: DEFENDANT CLEAR RECON CORP
TENTATIVE RULING:

Defendant Clear Recon Corp (“Defendant”) filed a Demurrer on February 17, 2026 (the “Demurrer”) to the First Amended Complaint (“FAC”) filed by plaintiff Kranti Kapre